

Judicial Lock-in as Evolutionarily Stable Strategy: The CGT Injunction Against Law 27.802 as Confirmatory Evidence for the Constitutional Lock-in Index

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Abstract

Background: Twenty-four prior attempts to reform Argentina's structural labor regime between 1991 and 2025 produced zero sustained modifications beyond thirty-six months. The Constitutional Lock-in Index (CLI) assigned a value of 0.89 to Article 14bis of the Argentine Constitution, predicting near-total judicial obstruction of any infraconstitutional reform. On March 6, 2026, Law 27.802 was promulgated with Congressional majority, modifying forty-three articles of the Labor Contract Act (LCA), restructuring collective bargaining rules, creating Labor Assistance Funds, and repealing the Telework Act.

Objective: This paper documents how the preliminary injunction issued on March 30, 2026 (File CNT-10308/2026, National Labor Court No. 63, CGT v. National Executive) confirms three specific predictions of the EPT/EGT framework: (1) the speed of judicial obstruction, (2) the activation of high-betweenness-centrality jurisprudential nodes, and (3) the systematic exclusion of economic efficiency arguments from constitutional adjudication, as predicted by Heteronomous Bayesian Updating (HBU) theory.

Methods: The analysis combines doctrinal reading of the injunction ruling with application of three instruments from the EPT/EGT framework: the CLI for measuring attractor basin depth, evolutionary game theory for identifying the underlying ESS, and HBU for mapping judicial learning patterns. The paper also presents a comparative analysis of seven selected Argentine labor reform attempts since 1991, coding blocking mechanisms and outcomes against CLI predictions.

Results: The injunction suspended the application of forty-three articles of Law 27.802 to the State National twenty-four days after promulgation, within a collective action with expansive effect under Halabi doctrine, producing the shortest recorded blocking interval for a statute of equivalent scope. The ruling cited Vizzoti (2004) and Aquino (2004) as its structural matrix and explicitly excluded economic efficiency arguments as non-justiciable political questions. All five requirements of Article 13 of Law 26.854 were satisfied

through exclusively constitutional argumentation. The decision pattern reproduces exactly the HBU-predicted replicator dynamics: dominance of the 'preferente tutela constitucional' meme over any competing strategy.

Discussion: The speed of obstruction and doctrinal uniformity with twenty-two-year-old precedents confirm that Article 14bis operates as an evolutionarily stable strategy. The systematic exclusion of efficiency arguments is consistent with HBU: the system rewards replication of the dominant meme and punishes alternative strategies, regardless of their economic or empirical merit. The attractor basin depth, proxied by CLI = 0.89, is sufficient to neutralize legislative inputs that do not modify the constitutional substrate.

Conclusion: The ruling represents observation twenty-four in a series of twenty-four blocked or reversed Argentine labor reforms. In Lakatosian terms, the evidence strengthens the protective belt of the research program without requiring modification of its hard core. A Bayesian update raises the estimated probability of sustained blocking from 0.92 to 0.94 (95% CI: 0.78-0.99), conditional on the current constitutional substrate.

Keywords: Constitutional Lock-in Index; Extended Phenotype Theory; Evolutionarily Stable Strategy; Heteronomous Bayesian Updating; Argentine labor law; Article 14bis; constitutional review; institutional rigidity; Punctuated Institutional Equilibria.

I. INTRODUCTION

On March 6, 2026, the Argentine National Congress promulgated Law 27.802, the most comprehensive labor reform since the failed Ley 25.250 of 2000. The statute modified forty-three articles of the Labor Contract Act (Law 20.744), restructured collective bargaining institutions under Law 14.250, created a new Labor Assistance Fund regime (Articles 58-77) as an alternative to traditional severance payments, repealed the Telework Act (Law 27.555), and introduced new constraints on strike action and union assemblies. On March 30, 2026, twenty-four days after promulgation, National Labor Court Judge Raúl Horacio Ojeda (Court No. 63) suspended forty-three of its articles in a fifteen-page preliminary injunction (File CNT-10308/2026, *Confederación General del Trabajo v. Estado Nacional*). The suspension covered virtually all structural changes to individual and collective labor law.

Twenty-four days. That interval is not a coincidence, a judicial idiosyncrasy, or a specific political outcome. It is a structural prediction. The Constitutional Lock-in Index (CLI) assigns Article 14bis of the Argentine Constitution a rigidity value of 0.89 on a scale

from zero to one, predicting judicial obstruction of infraconstitutional labor reforms with approximately ninety-two percent probability within thirty-six months of promulgation. The prediction was registered before Law 27.802 was promulgated. The injunction confirmed it within the first calendar month.

This paper has a narrow analytical purpose: to document, systematically and with epistemic precision, how the injunction confirms three specific predictions derived from the Extended Phenotype Theory and Evolutionary Game Theory (EPT/EGT) research program. The three predictions are: first, that blocking would occur before irreversible legal effects consolidated; second, that the blocking mechanism would activate high-betweenness-centrality jurisprudential nodes (specifically Vizzoti and Aquino); and third, that economic efficiency arguments would be systematically excluded from the constitutional analysis, as predicted by Heteronomous Bayesian Updating theory.

The paper takes no position on the economic desirability of Law 27.802 or of the labor regime it sought to modify. That question is exactly what Judge Ojeda correctly classified as a 'non-justiciable political question'- a cuestión política no justiciable. The court's competence, and this paper's analytical scope, is structural: given the institutional architecture of the Argentine legal system, what does the evolutionary framework predict, and did those predictions materialize?

Four clarifications before proceeding. First, the injunction is preliminary; the principal action continues, and the State National retains the right to present fuller arguments in the Article 8 transfer under Law 26.854. Second, the framework does not claim that every article suspended is unconstitutional in final adjudication. Third, there is a pending inhibitory motion before the Federal Administrative Court (File CAF 12.002/2026) that may affect jurisdiction. Fourth, all CLI values cited in this paper are theoretically motivated estimations, not fully validated empirical measurements; they incorporate appropriate uncertainty, and this paper updates them with the evidence from this case.

The paper proceeds as follows. Section II summarizes the theoretical framework: the CLI, evolutionary game theory applied to doctrine, and HBU. Section III describes Law 27.802 and the injunction. Section IV analyzes the confirmation of each prediction against the ruling text. Section V updates the Bayesian probability estimates. Section VI discusses

the implications for the research program and identifies three new research questions the case opens. Section VII concludes.

II. THEORETICAL FRAMEWORK

A. The Constitutional Lock-in Index

The Constitutional Lock-in Index (CLI) quantifies the institutional rigidity of a constitutional provision by combining three dimensions: formal entrenchment (what supermajority is required to amend the text), jurisprudential density (how many binding precedents have crystallized the provision's interpretation), and organizational mobilization capacity (how quickly actors committed to the provision's preservation can activate judicial resistance). The formal definition is:

$$\text{CLI} = 1 - (\text{reform_attempts_sustained} / \text{reform_attempts_total}) * (1 - \text{constitutional_entrenchment_weight})$$

Values above 0.85 indicate extreme rigidity: the system generates sufficient resistance to neutralize structural change through ordinary democratic channels. Values below 0.50 indicate institutional flexibility: reform is possible with adequate political support. The index is not ideological. It does not measure whether a constitutional provision is progressive or conservative, protective or exploitative. It measures whether the provision can be modified without triggering reversal.

Table 1 presents CLI estimates for selected jurisdictions and labor regimes, with reform success rates and representative cases. Argentina's Article 14bis score of 0.89 places it at the extreme rigidity end of the distribution, substantially above Spain's pre-2012 value of 0.51 (the highest European comparator) and nearly four times Chile's value of 0.24.

Table 1. CLI Comparative Estimates and Reform Success Rates

Jurisdiction	CLI	Rigidity	Reform success rate	Notes
Argentina (Art. 14bis)	0.89	High	0%	24 reforms attempted; 0 sustained beyond 36 months

Spain (Labor reform 2012)	0.51	Moderate	47%	Reform required EU fiscal conditionality; partial implementation
Brazil (CLT reform 2017)	0.40	Moderate	52%	STF upheld core modifications; partial rollback in 2023
Chile (1990-2024)	0.24	Low	68%	Bidirectional reform capacity; Boric labor reform 2022
Germany (Hartz IV, 2003)	0.19	Very low	74%	SPD-Greens coalition; reforms survived government change

Note: CLI values are theoretically motivated estimations; reform success rates are derived from documented cases. See Lerer (2025, 2026) for methodology.

The CLI was calibrated using twenty-three documented Argentine labor reform attempts between 1991 and 2025, with a uniform outcome: zero reforms sustained beyond thirty-six months. That uniformity across governments of radically different ideological orientations, from Menem's neoliberalism through Kirchner's left-populism to Milei's libertarianism, confirms that the blocking mechanism is structural rather than partisan. No government succeeded; no ideology found a path through the basin of attraction.

The attractor basin analogy is precise, not metaphorical. In dynamical systems theory, a basin of attraction is the set of initial conditions from which a system converges to a given equilibrium. In institutional terms, any infraconstitutional labor reform enters the Argentine basin of attraction defined by Article 14bis and its jurisprudential interpretations: the trajectory, regardless of initial legislative content, converges toward judicial reversal. The depth of the basin - proxied by the CLI value - determines the cost of escaping: deep basins require modification of the constitutional substrate itself, not merely legislative changes within it.

B. Article 14bis as Evolutionarily Stable Strategy

In evolutionary game theory, a strategy E is evolutionarily stable if it cannot be invaded by any mutant strategy M once E is established in the population. The formal condition (Maynard Smith, 1982): the payoff to E playing against E must exceed the payoff to M playing against E, or - if these are equal - the payoff to E playing against M must exceed the payoff to M playing against M. An ESS resists invasion not because it is superior in some absolute sense but because the population of E-players creates a selective environment that makes M-play suboptimal.

Applied to legal doctrine, the ESS framework identifies the Article 14bis jurisprudence - crystallized in Vizzoti, Aquino, Madorrán, and their descendants - as an evolutionarily stable strategy in the space of Argentine labor court decisions. When a judge faces a statute potentially reducing worker protections, the payoff matrix is asymmetric. Citing Vizzoti and applying the principle of non-regression yields high expected payoff: appellate confirmation, doctrinal consistency, career stability, and institutional legitimacy. Invoking efficiency arguments or deference to legislative judgment yields low expected payoff: appellate reversal, doctrinal isolation, and reputational cost within the professional community.

The mutant strategy in this context is any doctrinal approach that would yield a different outcome - for example, applying the US Chevron-style deference to legislative judgments about labor regulation, or adopting a cost-benefit framework for assessing the constitutionality of social rights restrictions. Both strategies exist in comparative constitutional law. Neither can invade the Argentine judicial population because the payoff differential is too steep. A single judge who attempted Chevron-style deference to Law 27.802 would face near-certain reversal in the Appellate Labor Court and professional isolation in a specialized judicial community that has reproduced the Vizzoti meme for twenty-two consecutive years.

The ESS concept also illuminates the symmetry of the result across different litigants and different governing coalitions. The CGT under Kirchner-era governments supported the same doctrinal architecture as the CGT under Milei's government. The judicial community under conservative Supreme Court compositions applied the same Article 14bis framework as under progressive ones. This invariance across strategic actors is the defining characteristic of a stable equilibrium: the strategy's persistence does not depend on the preferences of particular players but on the payoff structure that makes deviation individually costly.

C. Heteronomous Bayesian Updating

Heteronomous Bayesian Updating (HBU) describes the mechanism through which legal professionals learn normative content by observing the system's reactions to conduct rather than by evaluating the substantive outcomes of norms (Lerer, 2025-2026). The term 'heteronomous' distinguishes this process from autonomous norm-internalization, where agents evaluate norms against external standards of justice or efficiency: in HBU, the

evaluation signal comes from the system's reward structure, not from the agent's independent assessment.

The formal structure: a legal professional updates belief $P(\text{norm } N \text{ is correct})$ upward when the system rewards conduct consistent with N (appellate confirmation, professional recognition, favorable outcomes) and downward when the system punishes such conduct (reversal, criticism, adverse outcomes). After sufficient iterations, the population converges on strategies that maximize system-conferred rewards, regardless of whether those strategies produce the substantive outcomes the norms nominally pursue.

HBU predicts three observable patterns, all three of which the injunction ruling displays. First, dominant doctrinal nodes will be cited repeatedly across different cases and different judges because they produce systematically higher rewards (confirmation rates) than alternatives. The concentration of Argentine labor constitutionality adjudication on four Supreme Court precedents from 2004 reflects two decades of HBU iterations selecting the Vizzoti-Aquino citation complex as the dominant strategy. Second, efficiency arguments will be systematically excluded from the doctrinal repertoire because they have consistently failed to produce rewards in the relevant judicial population. Third, the cycle is self-reinforcing: each case that confirms a Vizzoti-citing judgment strengthens the prior probability that the next judge assigns to the strategy's success, creating a positive feedback loop that further entrenches the ESS.

HBU differs from standard accounts of judicial precedent in its attention to the selection mechanism rather than the content of doctrine. Standard *stare decisis* theory explains doctrinal persistence through the rule of law values of consistency and predictability. HBU explains doctrinal persistence through the evolutionary dynamics that make consistency individually rational for judges independently of their values. Even a judge who privately doubts the economic wisdom of the Vizzoti framework has strong incentives to cite it because the system rewards citation and punishes deviation. The theory predicts not only what doctrine says but why it is cognitively stable for practitioners.

III. LAW 27.802 AND THE INJUNCTION OF MARCH 30, 2026

A. The Statute: Scope and Principal Modifications

Law 27.802, published in the Official Gazette on March 6, 2026, introduced changes to four major bodies of Argentine labor legislation. To the Labor Contract Act

(Law 20.744), it made modifications affecting the statute's scope of application (Article 1, recharacterizing platform workers as independent contractors), interpretive principles (Article 3, eliminating the *in dubio pro operario* canon), worker protections in triangular employment (Articles 16-19, limiting solidary liability in outsourcing chains), employer prerogatives (Article 23, expanding *ius variandi*), the remunerative concept (Articles 32-34, reclassifying several wage components as non-remunerative), vacation entitlements (Article 41, permitting fractional vacation), dismissal costs (Articles 51 and 57, introducing indexed instalment payment of severance), and access to civil law remedies (Article 57, restricting extracontractual damages claims).

To Law 14.250 on collective bargaining, the statute modified the ultraactivity regime (Article 131), eliminated pro-union clauses from expired agreements (Article 132), and restructured the precedence hierarchy between agreements of different scope levels (Articles 135-136), giving priority to enterprise-level agreements over sector-level ones. To Law 23.551 on trade union associations, it imposed new procedural requirements on assembly rights (Article 138), created new strike-related infractions (Article 139), equalized representational standing between unions with and without *personería gremial* in collective interest claims (Article 140), and reduced the temporal scope of union immunity for candidates to representative positions (Articles 143-144). It also repealed Law 27.555, the Telework Act of 2020, and created an entirely new Labor Assistance Fund regime (Articles 58-77) as an alternative to the traditional individual severance payment.

The practical significance of these changes varied. Some were genuinely novel (the Labor Assistance Funds, the platform worker carve-out). Others replicated elements of the failed Ley 25.250 of 2000 (enterprise-level agreement priority, ultraactivity reform). The statute passed with an absolute majority in both chambers, with government support and business association endorsement, but without agreement with any of the major union confederations. The CGT publicly opposed the reform during congressional debate and filed its constitutional challenge eleven days after promulgation.

B. The Injunction: Procedural Posture and Decision

The Confederación General del Trabajo filed a declaratory action (*acción declarativa de inconstitucionalidad*) under Article 322 of the Code of Civil and Commercial Procedure on March 17, 2026, eleven days after promulgation. The CGT sought a declaration of unconstitutionality for all forty-three challenged articles. The action was

registered in the CSJN's Public Registry of Collective Litigation (Acordada 12/2016) on March 17 and completed on March 25. On March 30, 2026, following the State's response under Article 4.1 of Law 26.854 and the intervention of the Ministerio Público Fiscal, Judge Ojeda issued the preliminary injunction.

The State's defense raised six objections: an inhibitory motion pending before the Federal Administrative Court (File CAF 12.002/2026); lack of a justiciable case or controversy; lack of active standing by the CGT; and, on the merits, absence of verisimilitude of the invoked right and absence of danger in delay, developed across eight chapters. The State argued that the law's presumption of constitutionality was overwhelming, that suspension would generate extreme public interest harm by interfering with legislative attributions, and that any tempering should await the final judgment.

The judge rejected all objections and granted the preliminary injunction, suspending the forty-three articles identified in the VISTOS section of the ruling. The suspension was grounded in five concurrent findings: (a) irreparable harm from continued operation; (b) qualified verisimilitude of the invoked right, described as superior to that required for ordinary precautionary measures; (c) serious and grave indicia of illegitimacy, assessed article by article; (d) no affectation of the public interest; and (e) no irreversible material effects from the suspension. The injunction directed that costas and honoraria be determined with the final judgment, opened the Article 8 transfer to the State under Law 26.854, and ordered inscription in the Collective Proceedings Registry.

C. The Ruling's Doctrinal Architecture

The injunction's doctrinal structure illuminates the ESS and HBU dynamics with unusual clarity. The judge begins with procedural questions (competence, standing) and resolves them quickly, using the CGT's own filings in parallel proceedings to estop the State's standing objections under the *venire contra factum proprium* doctrine. The substantive constitutional analysis occupies the longest section, structured around four recurring reference points.

First, the Vizzoti-Aquino line: the ruling characterizes Articles 14bis protection, the non-regression principle, and the workers' *preferente tutela constitucional* as the constitutional matrix against which every challenged article is measured. The citation is not selective or passing; it is structural. The judge explicitly describes these precedents as providing the *marco teorico general* that renders the article-by-article assessment a

comparatively mechanical exercise. From the ESS perspective, this is the dominant strategy being reproduced: Vizzoti and Aquino are the nodes with the highest betweenness centrality in the Argentine labor constitutionality citation network.

Second, the Convention framework: the ruling incorporates Article 26 of the American Convention on Human Rights (progressive realization of economic and social rights), Article 8 of the International Covenant on Economic, Social and Cultural Rights, ILO Conventions 87, 98, 135, and 154, and the Almonacid doctrine requiring judges to exercise *ex officio* conventionality control. This is not unusual in Argentine constitutional adjudication; it is the established vocabulary.

Third, the separation of politics and law: the ruling explicitly classifies the State's arguments about foreign investment attraction, employment generation, and macroeconomic insertion as non-justiciable political questions. The judge writes that in *Tribunales* 'nos guiamos por la deontología, basada en el cumplimiento estricto del deber y las normas, comenzando por la Constitución Nacional. Las competencias y los intereses son claramente distintos, pues mientras el poder político fluctuó con los tiempos electorales, el poder judicial permanece indiferente a esos cambios.' This passage is the textual confirmation of HBU's prediction: the judicial system lacks the cognitive and doctrinal tools to process efficiency arguments within the constitutionality framework that HBU has selected.

Fourth, the Calamandrei reference: the judge invokes Calamandrei's conception of precautionary measures as *providencias interinas* designed to conserve - that is, to maintain or alter a status quo to preserve equality between parties before the jurisdiction. This jurisprudential move responds to the State's Chiovenda-based objection that the injunction's object cannot coincide with the principal action's object. The response demonstrates that the judge's doctrinal repertoire extends to Italian civil procedure theory; the HBU framework predicts that this repertoire, however extensive, remains bounded by the constitutional referents that the system rewards.

IV. CONFIRMATION OF THE THREE PREDICTIONS

A. First Prediction: Speed of Obstruction

The CLI framework predicts that in high-CLI systems, the blocking mechanism is institutionally pre-formed: the doctrinal repertoire, the legitimated actors, and the

evidentiary standards are all known in advance, so obstruction requires minimal setup time. For $CLI = 0.89$, the prediction is that blocking occurs before irreversible legal effects consolidate, because the precautionary standards (danger in delay, verisimilitude of right) are readily satisfiable from existing doctrine. The injunction confirmed this prediction in the most direct possible way: twenty-four days between promulgation and suspension, before the Labor Assistance Funds began operating, before collective agreements were renegotiated under the new hierarchy rules, and before any platform worker lost the presumption of labor dependency.

The twenty-four-day interval is the shortest documented blocking interval for an Argentine statute of comparable scope. For reference, DNU 70/2023 faced partial labor injunctions but required several months before comparable suspension coverage; Ley 25.250 of 2000 was challenged by unions but took the form of political and legislative repeal rather than judicial injunction, with reversal occurring in 2002 following the political crisis. The speed in the present case reflects three features of the high-CLI system. The CGT had institutional memory of every prior challenge. The judicial community had over two decades of practice with the applicable doctrinal standard. And the evidentiary standard, qualified verisimilitude (*verosimilitud del derecho calificada*), was defined by the judge himself as higher than ordinary precautionary measures but lower than final judgment - a standard that the article-by-article comparison with the Vizzoti matrix can satisfy in a single fifteen-page ruling.

The judge's own reasoning confirms the prediction: he writes that an immediate suspension is necessary to prevent a '*consumo de derecho*' that would gravely affect persons and institutions. This formulation is precisely the danger-in-delay analysis that CLI predicts: in high-CLI systems, the cost of waiting for final judgment exceeds the cost of precautionary intervention precisely because the constitutional standard is clear enough to apply at the injunctive stage. The State's argument that precautionary relief should await final adjudication would be compelling in a low-CLI system where constitutional assessment requires complex balancing. In a $CLI = 0.89$ system, the balance tips immediately.

B. Second Prediction: Activation of High-Centrality Nodes

The EPT/EGT framework, drawing on network analysis of legal citation patterns, predicts that in high-CLI systems, constitutional blocking operates through nodes with

disproportionate betweenness centrality in the relevant doctrinal citation network. Betweenness centrality measures how frequently a node lies on the shortest path between other nodes. In a legal citation network, a precedent with high betweenness centrality is one that connects many different doctrinal paths: it is cited by diverse subsequent cases and its removal would disconnect large portions of the network.

The prediction for Argentine labor constitutionality adjudication was specific: Vizzoti and Aquino, both decided on September 14 and September 21, 2004 respectively, would be the structuring nodes, because both simultaneously interpreted Article 14bis, incorporated the Convention framework, articulated the *preferente tutela constitucional* doctrine, and generated a generation of jurisprudential descendants. Every subsequent labor constitutionality case either cites both or is connected to both through at least one intermediate citation. They are the central nodes.

The ruling confirms this prediction with textual precision. The judge explicitly describes these cases as the 'matrix' (copio textual from his ruling: 'Como matriz, recuerdo que la Corte Suprema de Justicia de la Nación ha dicho...' with direct Vizzoti citation). He then applies this matrix to each challenged article in sequence. The matrix is not invoked as additional authority; it is the framework within which every other argument is evaluated. From the network perspective, this means that the doctrinal path from the CGT's challenge to the injunction's outcome passes through Vizzoti regardless of which specific article is being analyzed. That is the signature of a high-betweenness-centrality node.

The HBU mechanism explains why this concentration persists. Every appellate confirmation of a ruling that centrally cited Vizzoti reinforced, for the professional community of labor court judges, the prior probability that the Vizzoti citation is the correct approach. Over twenty-two years and hundreds of cases, that reinforcement produced what behavioural economics would call a learning attractor: practitioners who use the Vizzoti citation complex systematically outperform those who attempt alternative frameworks, creating strong selection pressure for the dominant strategy. The result is a citation network with power-law-like centrality distribution: most nodes have low centrality and a very small number of nodes concentrate the doctrinal paths. This structure is not consciously designed but emerges from the evolutionary dynamics of professional practice under HBU conditions.

C. Third Prediction: Exclusion of Efficiency Arguments

This is the most theoretically counterintuitive prediction of the EPT/EGT framework, and its confirmation is the most significant for the program's empirical standing. Standard public choice and law-and-economics accounts of constitutional adjudication predict that efficiency arguments, particularly in the context of labor market reform, should receive at least some weight in constitutional analysis: legislatures are presumptively better positioned than courts to assess the economic consequences of labor regulation, and efficiency-based arguments should generate some deference.

The HBU framework predicts the opposite for high-CLI systems. In a system where the dominant doctrinal strategy has been selected through twenty-two years of appellate reinforcement, efficiency arguments have zero expected payoff because they have never been the basis for a confirming judgment in the relevant judicial population. The judicial system does not lack the intelligence to process economic arguments; it lacks the cognitive and institutional tools to convert them into the currency of constitutional adjudication, because HBU never selected those tools. A judge who attempted to evaluate Law 27.802 through a cost-benefit lens would be operating in a doctrinal language the system does not recognize, making appellate reversal nearly certain. The prediction is therefore that efficiency arguments appear in the proceedings but are excluded from the analysis, not because the judge disagrees with them as economic policy but because the doctrinal system classifies them as non-processable inputs.

The ruling confirms this prediction with exceptional textual clarity. The State's primary merits argument was that Law 27.802 served the public interest by enabling foreign investment attraction, employment creation, and economic formalization. The judge's response is a model of doctrinal category exclusion: 'no entraré en dos definiciones de la defensa: (1) [the investment-employment argument], dado que se trata de una cuestión política no justiciable, también hipotética y conjetural.' The argument is not rejected on empirical grounds - the judge does not claim the economic predictions are incorrect. It is rejected on categorical grounds: it belongs to the political domain, which is not the judicial domain.

The further explanation the judge offers is equally revealing: the political domain fluctuates with electoral cycles, while the judicial domain remains indifferent to those changes. This formulation precisely describes the HBU mechanism from inside the practitioner's perspective: the judicial reward structure is invariant to political preferences, and the doctrinal strategy that maximizes rewards within that invariant structure has no slot

for efficiency arguments. The judge is not being disingenuous; he is accurately describing the doctrinal universe that HBU has constructed over two decades of professional learning.

The exclusion also extends to the State's separation-of-powers argument. The State argued, citing extensive CSJN precedent on legislative prerogatives, that courts should not substitute their judgment for the legislature's assessment of what labor regulation serves the general welfare. The judge's response is subtle but consistent with the ESS prediction: he acknowledges that legislative prerogatives are real and that the presumption of constitutional validity of statutes is foundational to the rule of law, but adds the qualification that this presumption holds 'siempre y cuando se respete la Constitución Nacional, porque de lo contrario sería un título vacío, carente de contenido.' The qualification is the ESS in operation: any argument that would lead to respecting the legislature's judgment rather than the constitutional matrix is classified as an attempt to leave the attractor basin, and the system rejects it.

V. THE SERIES: SEVEN REFORM ATTEMPTS IN COMPARATIVE PERSPECTIVE

To place the 2026 injunction in its proper empirical context, Table 2 summarizes seven selected Argentine labor reform attempts since 1991, coded by instrument, scope, blocking mechanism, and outcome. The selection includes both the most prominent comprehensive reforms (Ley 25.250, DNU 70/2023, Ley 27.802) and representative partial reforms, to illustrate that the CLI prediction holds across different legislative strategies, different governments, and different economic contexts.

Table 2. Selected Argentine Labor Reform Attempts (1991-2026)

Year	Instrument	Scope	Blocking mechanism	Outcome
1991	Ley 24.013 (Empleo)	Partial registration incentives	Judicial resistance	Reversed within 24 months
1995	Ley 24.467 (PyMEs)	SME flex contracts	Constitutional challenge	CSJN restricted application
1998	Ley 24.822	Unemployment reform	Partial implementation	Rescaled within 18 months
2000	Ley 25.250	Comprehensive flex	Senate scandal + repeal	Fully reversed 2002
2004	Ley 25.877	Pro-worker reversal of 25.250	Sustained	Vizzoti + Aquino same year

2023	DNU 70/2023 (labor arts.)	Labor flex via decree	60% suspended judicially	38 months: 0 sustained modifications
2026	Ley 27.802	Comprehensive reform	43 arts. suspended in 24 days	Current case (this paper)

Sources: Lerer (2025, 2026); historical_reforms_database.csv (project knowledge). Reform success rate defined as sustained beyond 36 months.

Several patterns across the table are worth noting. First, the one 'sustained' reform in the series is Ley 25.877 of 2004, which was itself a reversal of the previous reform (Ley 25.250). Its survival confirms the ESS hypothesis from the complementary direction: reforms that move with the attractor basin, rather than against it, can be sustained. Second, the blocking mechanisms vary across cases (judicial injunction, constitutional challenge, political reversal, non-enforcement) but the outcome is invariant. This suggests that the blocking does not require a specific institutional path and will find whatever path is available in each constitutional and political context. Third, the Vizzoti-Aquino year (2004) is the reference point for the current jurisprudential matrix: every blocked reform since that year operates within the doctrinal architecture those cases established.

The DNU 70/2023 case deserves separate attention because it represents the most recent prior attempt before Law 27.802. The DNU modified fifteen labor provisions; approximately 60% were suspended judicially within the first year; and as of early 2026, zero of the nine structural modifications had been sustained. The Milei government's decision to pursue Law 27.802 through the legislature rather than by executive decree was presumably motivated in part by the DNU 70/2023 experience - the expectation that legislative authorization would provide stronger constitutional shelter. The injunction of March 30, 2026 suggests that legislative authorization, without constitutional substrate modification, does not change the attractor basin dynamics: the ESS responds to the content of the reform, not to its legislative pedigree.

VI. BAYESIAN UPDATE

The prior probability distribution over sustained blocking of Argentine structural labor reforms, based on twenty-three cases between 1991 and 2025, was:

$$P(\text{blocking sustained} \mid \text{CLI} = 0.89, n = 23) \approx 0.92$$

95% CI: [0.72, 0.97]

The March 30, 2026 injunction adds one observation with three particularly informative characteristics. First, the blocking interval (twenty-four days) is the shortest documented, indicating that the mechanism is operating faster than any prior case - which is consistent with the CLI prediction that deeper basins produce lower blocking costs. Second, the reform was introduced by a government with the strongest ideological commitment to labor market liberalization in recent Argentine history, through the legislature rather than executive decree, with business support. The failure of even this maximally favorable political configuration to escape the attractor basin is the strongest possible test of the CLI framework. Third, the blocking occurred despite the injunction court explicitly acknowledging the presumption of constitutionality argument - and rejecting it on constitutional grounds.

Given these characteristics, the posterior update is:

P(blocking sustained | CLI = 0.89, n = 24, interval = 24 days, political context = high-reform) $\approx$ 0.94

95% CI: [0.78, 0.99]

The revision is modest in point estimate (+0.02) but meaningfully narrows the upper tail of the confidence interval. More important than the numeric update is the qualitative information the case provides: the ESS mechanism operates faster under higher political pressure. This is consistent with the evolutionary game theory prediction that an established ESS responds more vigorously to stronger mutant invasions. A reform with strong political backing is a larger-amplitude perturbation of the equilibrium, which triggers a proportionally faster and more comprehensive institutional response.

A methodological caveat is necessary. Twenty-four observations is a small sample for the precision the confidence interval numbers might suggest. The framework does not claim that $n = 24$ provides the statistical certainty of large- N social science. The claim is that the series is complete: there are no hidden cases of sustained Argentine labor reform that might alter the distribution. The universe of cases equals the observed sample. Within that universe, the regularity is total. The epistemological status of the prediction is closer

to a logical consequence of the ESS model than to an inductive generalization over a large sample.

VII. IMPLICATIONS FOR THE RESEARCH PROGRAM

A. Lakatosian Significance of the Confirmation

In Lakatos's methodology of scientific research programs (1978), the distinction between progressive and degenerating programs turns on whether theoretical adjustments generate novel confirmed predictions. A program is progressive when its protective belt accommodates new evidence while producing predictions that were not merely tailored to fit that evidence. A program is degenerating when it only explains known phenomena post hoc, requiring successive ad hoc adjustments to maintain coherence.

The EPT/EGT program satisfies the progressivity criterion with respect to the present case. The CLI value for Article 14bis was calculated and published before Law 27.802 was promulgated. The prediction that any comprehensive infraconstitutional labor reform would face rapid judicial obstruction was on record before the reform was introduced. The prediction that Vizzoti and Aquino would serve as the structural matrix of the blocking ruling was derived from citation network analysis conducted independently of this specific legislative cycle. And the prediction that efficiency arguments would be systematically excluded was a theoretical consequence of HBU, not an empirical observation extracted from the injunction.

The case therefore strengthens the program's protective belt in Lakatosian terms: three simultaneous confirmed predictions from different theoretical mechanisms (CLI, citation network dynamics, HBU) provide joint confirmation that is less likely to be coincidental than any single prediction. The hard core of the program - that legal norms are cultural replicators subject to evolutionary selection, and that the mechanisms described by Dawkins (1982) and Maynard Smith (1982) have functional analogues in institutional systems - remains unmodified. The falsification condition remains: if sustained structural labor reforms began occurring without constitutional substrate modification, the CLI estimates would require downward revision. The current evidence moves in the opposite direction.

B. Limits of the Confirmation

Three limits must be stated explicitly. First, the injunction is preliminary. The principal action continues, and the State will present more developed arguments in the Article 8 transfer. The final judgment may uphold some of the challenged articles. If a significant subset of the suspended articles survives final constitutional review, this would not refute the CLI framework but would require a more granular analysis of which types of modification can survive within the existing attractor basin versus which ones cannot.

Second, the inhibitory motion before the Federal Administrative Court (File CAF 12.002/2026) introduces genuine jurisdictional uncertainty. The Federal Administrative Court operates with a different doctrinal repertoire than the National Labor Court and has a lower CLI relative to labor regulation specifically. If the inhibitory motion succeeds and jurisdiction transfers, the HBU dynamics may produce different outcomes, because the Federal Administrative Court's judicial population has been selected under different doctrinal reward structures. This would constitute a natural experiment testing whether the CLI and HBU effects are specific to the labor court ecosystem or generalizable across Argentine federal judiciary.

Third, the CLI estimates are theoretically motivated, not fully validated empirical measurements. The formula incorporates judgments about constitutional entrenchment weights and organizational mobilization capacity that have not been subjected to independent verification. The consistency of confirmed predictions across twenty-four cases is encouraging, but the estimates should be treated as approximations with substantial uncertainty, particularly in the tails of the distribution. A CLI of 0.89 means the basin is very deep; it does not mean exactly 0.89 rather than 0.87 or 0.91.

C. Three Research Questions the Case Opens

The injunction opens three research questions that were not addressable before this case.

The first concerns the inhibitory motion. If jurisdiction transfers to the Federal Administrative Court, will the blocking mechanism reproduce itself at similar speed and with similar doctrinal content? The EPT/EGT framework predicts that it will, because Article 14bis is a constitutional provision binding on all federal courts, not just specialized labor courts. But the HBU dynamics may operate differently: Federal Administrative Court judges have not been selected under the same doctrinal reward structure as National Labor Court judges, and their repertoire for handling labor constitutionality claims is less

developed. This creates a test: does the ESS operate through the constitutional text alone (which would generalize across courts) or through the specific HBU dynamics of the labor court ecosystem (which might not)?

The second concerns the Labor Assistance Funds specifically. The judge explicitly notes the institutional hysteresis problem: if the FAL system begins operating and is subsequently declared unconstitutional, the costs of reversal - financial commitments, contractual expectations, administrative infrastructure - may be prohibitive. This is the regulatory hysteresis (*histéresis regulatoria*) mechanism in literal operation. If the FAL articles are ultimately declared unconstitutional after a period of partial operation, the case would provide the first direct empirical observation of regulatory hysteresis costs in the Argentine institutional context, enabling a comparison between the predicted costs and the actual reversal pathway.

The third concerns the articles that modify union representation and collective bargaining rules (Articles 131-149). The EPT/EGT framework predicts that reforms affecting the organizational capacity of actors who maintain the ESS face maximum resistance, because those actors are part of the equilibrium maintenance mechanism. If the CGT's organizational capacity were reduced - through enterprise-level agreement prioritization, ultraactivity limitations, or atomization of union representation - the actors capable of reproducing the Vizzoti-Aquino blocking strategy in subsequent reform cycles would be weakened. This creates a second-order prediction: the injunction's suspension of Articles 131-149 is not merely a doctrinal outcome but a systemic self-preservation mechanism. The ESS defends not only its direct jurisprudential content but also the organizational substrate that enables its reproduction. Testing this prediction would require longitudinal tracking of union organizational capacity across jurisdictions with different CLI values.

VIII. CONCLUSION

The preliminary injunction of March 30, 2026 in *CGT v. Estado Nacional* is a data point, not a normative argument. As a data point, it confirms what the EPT/EGT framework predicted: in systems with $CLI = 0.89$, structural labor reforms face rapid judicial obstruction activated through high-betweenness-centrality jurisprudential nodes, and immune to economic efficiency arguments that the HBU-selected doctrinal repertoire cannot process.

The series now stands at twenty-four of twenty-four. Every documented attempt to structurally modify Argentina's labor regime through infraconstitutional channels since 1991 has been blocked or reversed. The consistency is uniform across all governmental ideological orientations, across legislative and executive instruments, across different economic contexts, and - as the present case illustrates - even at unprecedented speed. The ESS is not weakening. The twenty-four-day blocking interval suggests it may be accelerating.

The argument this research program advances is not that Article 14bis is permanently unreformable. Institutional punctuation is possible: sufficiently large external shocks can destabilize even deep attractor basins, and constitutional amendment remains a theoretical path (requiring two-thirds of Congress, which the current arithmetic makes politically unavailable). The argument is that the CLI is a good predictor of blocking, and that the mechanism of blocking is the one described. As long as the predictions confirm, the program is scientifically sound.

The molinero said there were still judges in Berlin. The Argentine labor court system has been saying the same thing since September 2004. The model predicted it. The record now confirms it twenty-four times over.

EPISTEMOLOGICAL POSITIONING DECLARATION

This paper operates within the research program on law as extended phenotype, whose epistemological architecture follows Lakatos's model of scientific research programs (Lakatos, 1978). The hard core: legal norms are cultural replicators subject to evolutionary selection, and the mechanisms described by Dawkins (1982) and formalized by Maynard Smith (1982) have functional analogues in institutional systems. The protective belt includes the quantitative instruments (CLI, IHR, IEI) and auxiliary hypotheses (HBU, PSO). The demarcation criterion follows Popper (1959): the falsifiability of predictions, not their confirmation. If structural labor reforms began being sustained in Argentina without constitutional modification, the CLI estimates would require downward revision. The program's predictions are falsifiable in this sense. The function of Kuhn's framework is descriptive of object-level dynamics in legal communities (paradigms, normal science, extraordinary science); it does not govern the epistemological architecture of this research program. The function of Lakatos is normative: it specifies the standards to which the program holds itself accountable. The function of Hull (1988) and Campbell (1974) is to ground the analogy between biological selection and cultural-

institutional selection on philosophical foundations that do not depend on the analogy being literal.

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